Overview

Purpose	This document provides the instructions for reportability decision (RD) making and reporting to regulatory authorities and/or notified bodies.
Scope	This document applies to the functions that perform activities related to reportability decisions and regulatory reporting (RR) according to applicable regulations, including but not limited to: ▪ National Medical Product Association (NMPA) regulations in China. ▪ SAMR (State Administration for Market Regulation), Provisions for the Administration of Medical Device Adverse Event Monitoring and Re-Evaluation (SAMR Order No.1)
Roles	Formally Designated Complaint Handling Unit ▪ Operating Unit (OU) Complaint Unit ▪ Regional Complaint Unit (RCU)

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Terms and Definitions

Term	Definition	Source
Adverse Event of Medical Device	Medical device adverse event refers to any harmful event occurred under the normal use of approved medical	SAMR Order No. 1

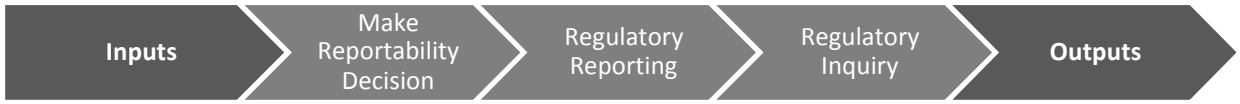
Term	Definition	Source
	devices that have caused or may have caused injury to the human body.	
Aware Date	The date that an employee of Medtronic, or an entity acting on Medtronic's behalf, acquires information that reasonably suggests that a reportable event has occurred. Aware Date may or may not be the same date as Notify Date (see definition of Notify Date below). NOTE: See *054-P044 Medical Device Reporting Appendix A* for additional detail and examples of Aware Date vs. Notify Date	Medtronic
Cluster Adverse Events	Cluster Adverse Events refer to events that occur in a relatively concentrated time and area during the use of the same medical device, causing damage or threat to the health or life safety of a certain number of people.	SAMR Order No. 1
Foreign Experience Report (FER)	When the complaint event did not occur in a specific country, but because the product in question is registered there, that country's Regulatory Body may want a report notifying them of the complaint.	Medtronic
Innovative Device	A kind of medical device approved to market in China through a special approval process that is expedited in comparison to the standard medical device license registration process.	Medtronic
Medical or Surgical Intervention	Any deliberate attempt to modify a health outcome, including drugs, surgical procedures, devices, behavioral treatments, and process-of-care changes (including hospitalization), excluding general first aid.	Medtronic
Serious Injury (China)	Means one of the following situations: life threatening; or cause permanent injury to body function or the structure; medical interventions must be taken to avoid the permanent injury or the impairment.	SAMR Order No. 1
Supplemental Report/Follow Up Report	A report submitted after the initial MDR is submitted for an event, where information is obtained that was not provided in the first report because it was not known or was not available when the initial report was submitted.	Medtronic
Incident	A malfunction or deterioration in the characteristics and/or performance of a device, as well as any	Medtronic

Term	Definition	Source
	inadequacy in the labeling or instructions for use (IFU) which: ▪ Led or might have led to a death ▪ Led or might have led to a serious deterioration in the state of health of patient, user, or another person. ▪ A serious deterioration in the state of health includes: – Life-threatening illness or injury – Permanent impairment of a body structure – A condition necessitating medical or surgical intervention to prevent permanent impairment of a body function or permanent damage to a body structure – Any indirect harm because of an incorrect diagnostic or IVD test results when used within manufacturer's instructions for use ▪ Fetal distress, fetal death, or any congenital abnormality or birth defects.	
Malfunction	A failure of the device to meet its performance specifications or otherwise perform as intended. Performance specifications include all claims made in the labeling for the device and include uses commonly applied in the medical community. User errors may also be considered to be a malfunction despite the fact that the device did not fail to meet specifications (refer to User Error definition below).	Medtronic
Notify Date	The date when a Medtronic Employee/Agent was initially informed of a potential complaint. Notify Date may or may not be the same as Aware Date (see Aware Date definition above).	Medtronic
Operating Unit Complaint Unit	A unit that executes and maintains processes for receiving, reviewing, and/or evaluating complaints. Note: This complaint unit may be comprised of one or more of the following functional groups: ▪ Customer Quality Experience Management (CQXM) ▪ Functions/individuals that contribute to complaint analysis/investigation	Medtronic
Original Equipment	An external supplier of a finished device, drug, biologic, human tissue or combination product which:	Medtronic

Term	Definition	Source
Manufacturer (OEM) Product	▪ Owns the design and manufacture; ▪ Is designated as the Legal Manufacturer; and ▪ Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	
Permanent	Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. Determination of what is trivial shall be made by a Person Qualified to Make a Medical Judgment. Data inputs into this decision may include, but are not limited to, the following: ▪ The risk management document assigned severity for the failure mode ▪ Hazard analysis and/or situation analysis for the failure mode ▪ Assessment of the severity of the event Input from a Person Qualified to Make a Medical Judgment (as defined in this document).	Medtronic
Regional Complaint Unit	A complaint-handling unit that resides within the Region that executes certain process steps.	Medtronic
Regulatory Inquiry	A request for information from a regulatory body. Possible regulatory inquiries include, but are not limited to, complaints, regulatory reports, professional publications and presentations, user reported events, and complaint trending information.	Medtronic
System	Multiple devices approved as a system by the regulator.	Medtronic
Trivial	In the context of assessing severity of impairment or damage, trivial is considered non-life threatening impairment or damage.	Medtronic
User Error	An error regarding the use of a device, made by the person using the device, that is inconsistent with the approved instructions for use (IFU) or other training provided to the user. Act or omission of an act, that has a different result to that intended by the manufacturer or expected by the operator of the medical device (unintended use against IFU).	Medtronic

Term	Definition	Source
Serious Public Health Threat	Any event type which results in imminent risk of death, serious deterioration in state of health, or serious illness that requires prompt remedial action.	Medtronic
Risk of Substantial Harm to Public Health/Serious Public Health Threat	An event type that results in imminent risk of death, serious deterioration in state of health, or serious illness that requires prompt remedial action, events that are of significant and unexpected nature such that they become alarming as a potential public health hazard, and/or the possibility of multiple deaths occurring at short intervals.	Medtronic
Remote	To be defined by each business utilizing occurrence probabilities outlined in the risk management procedure and/or risk management file for the product.	Medtronic

Process Overview



- Product Complaint

- Decision Rationale
- Regulatory Report
- Record of Inquiry

Responsibility Matrix – Mainland China

Portfolio	Operating Unit	RD	Approve RD	RR	Approve RR	Submit RR	FER	Approve /Submit FER
Cardiovascular	Cardiac Ablation Solutions (CAS), Cardiac Rhythm Management (CRM), Mechanical Circulatory Support (MCS), Cardiac Surgery, Structural Heart & Aortic Integrated, Coronary & Renal Denervation, Peripheral Vascular Health (PVH)	RCU	N/A	RCU	N/A	RCU	OU	RCU

Portfolio	Operating Unit	RD	Approve RD	RR	Approve RR	Submit RR	FER	Approve /Submit FER
Diabetes	Diabetes	OU	RCU	RCU	N/A	RCU	OU	RCU
Medical Surgical	Endoscopy, Surgical, Acute Care & Monitoring (ACM), Ventilation Service and Support (VSS)	RCU	N/A	RCU	N/A	RCU	OU	RCU
Neuroscience	Cranial & Spinal Technologies (incl. Medicrea, Titan, and Kanghui), Ear/Nose/Throat, Neuromodulation, Neurovascular, Pelvic Health & Gastric Therapies	RCU	N/A	RCU	N/A	RCU	OU	RCU

Process Detail

1. Make Reportability Decision

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review the event and associated information and evaluate if complaint is reportable according to regulation of Provisions for Medical Device Adverse Event Monitoring and Re-evaluation (SAMR Order No.1). ▪ Make a timely RD for every complaint based on information reasonably known. ▪ Refer to Appendix A - Mainland China Decision Tree and Regulatory Report when making the RD* ▪ For Original Equipment Manufacturer (OEM) products, reporting responsibility is applicable if Medtronic is the License Holder or Importer for the product in China. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder or Importer and therefore has reporting responsibilities. – When making the RD for events involving Original Equipment Manufacturer (OEM) products, input received from the OEM may be considered as needed to inform the RD. Where Medtronic is responsible for reporting, the final decision will be made per Medtronic process. * **Exception:** For adverse events which are reported directly to

Step	Role	Action
		NMPA by hospitals or distributors (ex: Adverse Drug Reaction Report (ADR), complete the associated RD as reportable. Document the RD in the complaint file. Based on results of the decision trees, rationale is provided in *Appendix D – Code and Rationale Matrix*. NOTE: Information may need to be requested from the customer to make the RD. Perform all customer communication per 027-WI188, *Customer Communication* or equivalent.
2.	Formally Designated Complaint Handling Unit	Review the previously documented RD when additional information is received that potentially changes the decision. A review is required for information such as, but not limited to the following: ▪ Aware date ▪ Event clarification ▪ Serial or lot number ▪ Patient outcome ▪ Alleged failure mode If the initial RD changed after the reassessment, determine if a supplemental or follow up report to the health authority applies. If additional information is received to change the initial RD from not reportable to reportable, a report should be submitted. The Aware Date for an event may change based on additional information received but should always indicate when the first Medtronic employee had the information that informed the regulatory decision. ▪ Information such as, but not limited to patient ID, gender, physician name, etc. does not require review of previously documented RD. ▪ Document a reassessed decision in the complaint file.

Step	Role	Action
3.	Formally Designated Complaint Handling Unit	China regulations may require RDs (e.g., Foreign Experience Reports (FER)) for events that occur in other Regions/countries. ▪ Complete any FER decisions timely to ensure regulatory reports are submitted on or before the due date. ▪ Refer to *Appendix A* - Mainland China *Decision Tree and* Regulatory *Report* when making the RD ▪ For OEM products, FER responsibility is applicable if Medtronic is the License Holder or Importer for the product in China. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder or Importer and therefore has reporting responsibilities. See *Appendix B - Matrix Logic for Determining Report Types*, for reporting requirements. ▪ Assessment of the initial FER as 'Potential' must occur after completion of complaint investigation. If additional information is received after a reporting decision has been made, and the information may change a non-reportable decision to reportable, reassess the original FER decision per 027-WI185, *Intake, Assessment and Complaint Determination*.

2. Regulatory Reporting

Step	Role	Action
1.	Regional Complaint Unit	Complete RRs using the current report template for the applicable report type. Access reports on the regulatory body website and/or the complaint handling system(s). If multiple regulatory reports are required for a single event, align each report with this document.
2.	Regional Complaint Unit	Translate reports to local language prior to submission, as necessary. ▪ Report language must meet applicable regulatory authority requirements.
3.	Regional Complaint Unit	Submit all RRs on or prior to the determined due date. Refer to the decision tree *Appendix C* for applicable reporting timelines. ▪ Include all required information known at the time of the report.

Step	Role	Action
4.	Regional Complaint Unit	When a RR has been submitted and has new findings or understandings of events and evaluation results, determine if it qualifies for reporting via supplemental report in accordance with the country specific requirements.
5.	Regional Complaint Unit	Attach a copy of the submitted report to the complaint record.
6.	Regional Complaint Unit	If a report is submitted late (i.e., after the due date, including initial and supplemental reports), refer to D00528427, *Regulatory Report Timeliness Evaluation* or local processes.
7.	Regional Complaint Unit	Submit a copy of the RR to other interested parties if required/requested (e.g., regulatory bodies, notified bodies, pharma partners).
8.	Regional Complaint Unit	If a report receipt (or acknowledgement number) is provided by a regulatory authority and/or notified body, document the information within the complaint file.
9.	Regional Complaint Unit	Identify Cluster Adverse Events and escalate to the OU Complaint Unit for status of investigation(s).

3. Regulatory Inquiry

Regulatory authorities may submit inquiries or request additional information from the Operating Unit or Region.

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Process regulatory inquiries per D00224727, *Customer Quality Regulatory Inquiries.*

References

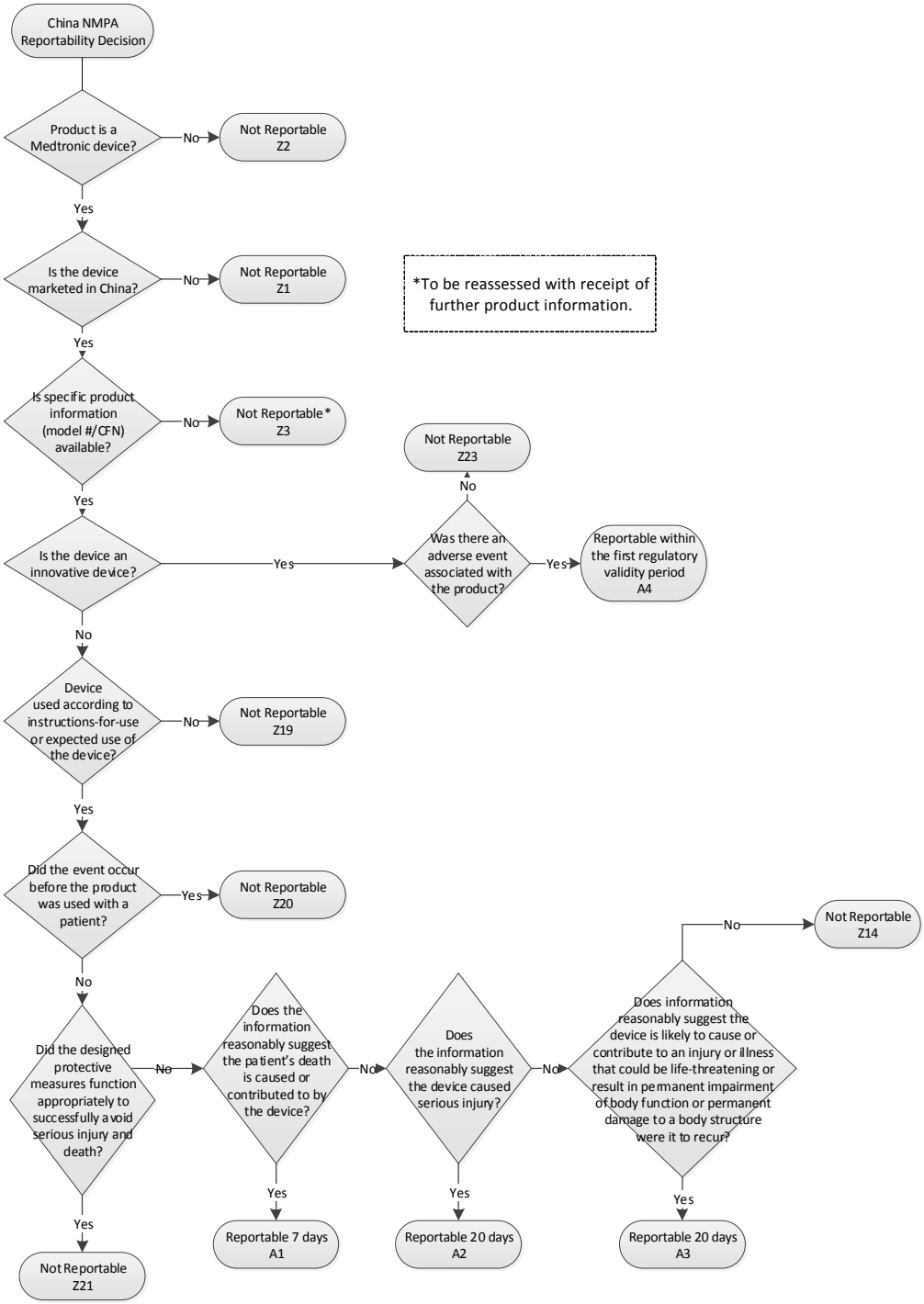
Number	Title
027-WI188	Customer Communication
027-WI185	Intake, Assessment and Complaint Determination
D00224727	Customer Quality Regulatory Inquiries
D00528427	Regulatory Report Timeliness Evaluation
054-P044	Medical Device Reporting

Quality Records

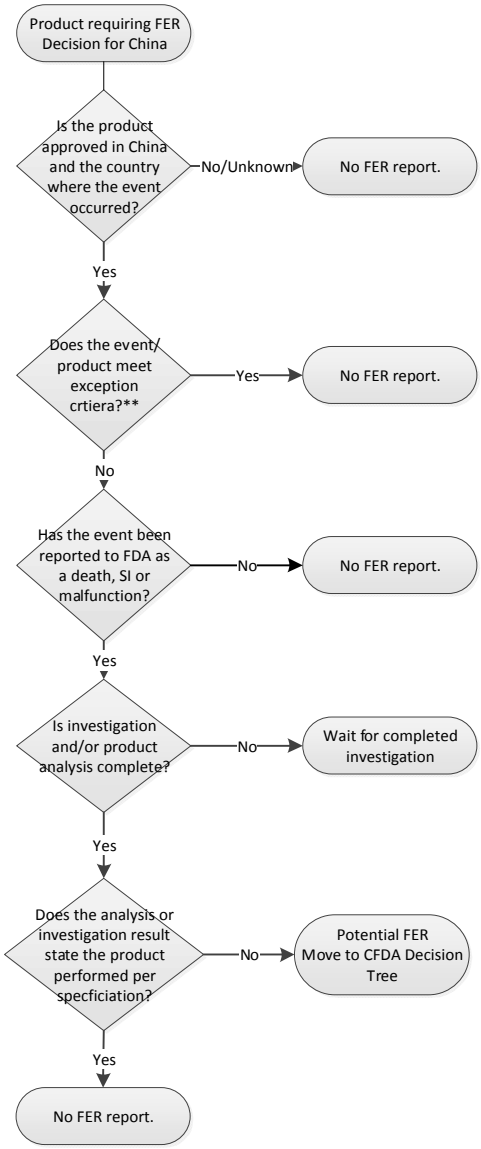
Quality Record	Required Approvals
Complaint Record	None
Regulatory Report	None

Appendix A – Mainland China Decision Tree

NMPA Decision Tree



FER decision tree



Exception Criteria:
1. Failing to use medical device in accordance with the instruction for use, label, and warning information
2. Use of medical device beyond service life or validity period
3. Adverse event caused by patient's own disease
4. Protective measures for device functioned normally to avoid a death or SI
5. Protective measure for medical device functioned normally.
6. Predictable side effects
7. Deficiency found prior to use (event happened before use in patient)

Appendix B – Matrix Logic for Determining Report Types

Country	In Country Event	Event in Another Country; Same Device Registered in Country	Event in Another Country; Similar Device Registered in Country
	Yes/No	**Yes/No**	**Yes/No**
China	**Yes**	**Yes**	**No**

Appendix C – China (NMPA) Reporting Timelines

Report Type	Timeline
Cluster adverse events reporting	Report the occurrence of adverse events within 12 hours by telephone or fax to the provincial, autonomous regions, municipalities directly under the central drug supervision and administration departments and health administrative departments and the national medical device adverse event monitoring information system. Each incident should also be reported within 24 hours to national medical device adverse event monitoring information system. Report the investigation results and self-inspection results of the production quality management system to the local and provincial, autonomous region and municipality directly under the central government drug regulatory authorities and monitoring institutions Within 7 days.
Initial report for serious injury, likely to result in serious injury or death	Within 20 calendar days of becoming aware of event
Initial report for Death	Within 7 calendar days of becoming aware of event
Report for a Foreign Experience Report (FER)	Within 30 calendar days of agent appointed by the foreign holder becoming aware of event
Follow-up report for serious injury, likely to result in serious injury or death (including investigation, analysis and evaluation, etc.)	Within 45 calendar days after the holder reports a medical device adverse event or becomes aware of the relevant medical device adverse event through the National Medical Device Adverse Event Monitoring Information System
Follow-up report for Death (including investigation, analysis and evaluation, etc.)	Within 30 calendar days after the holder reports a medical device adverse event or becomes aware of the relevant medical device adverse event through the National Medical Device Adverse Event Monitoring Information System

Appendix D – Code/Rationale Matrix

Code	Final Rationale
A1	Reportable (7 calendar days) as information suggests the device caused or contributed to the death
A2	Reportable (20 calendar days) Information suggests the device caused serious injury
A3	Reportable (20 calendar days) Information suggests the device is likely to cause death or serious injury
A4	Reportable (within the first registration cycle) as the device was an innovative device and information suggests there was an adverse event associated with the product
Z1	Not reportable as the product is not marketed in the region governed by this regulation
Z2	Not reportable as the product was not confirmed to be a Medtronic product
Z3	Not reportable as specific product information not available, and will be reassessed if there are any updates
Z14	Not reportable as the device did not or may not cause or contribute to a death or serious injury
Z19	Not reportable as the device was not used according to the Instruction for Use or expected use
Z20	Not reportable as the event occurred prior to patient use
Z21	Not reportable as designed protective measures functioned appropriately to successfully avoid serious injury/death
Z23	Not Reportable as the device was an innovative device but was not associated with any adverse event